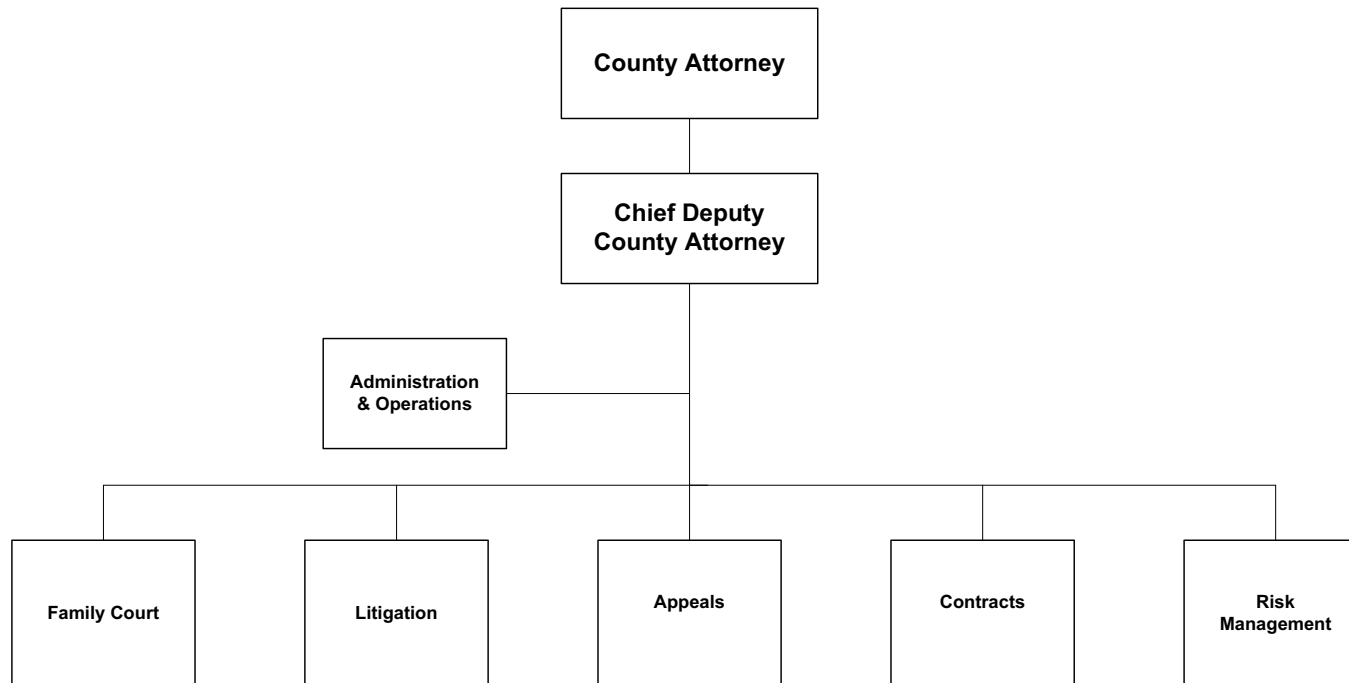


Board of Acquisition and Contract (17)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
100 Annual Regular Salaries	1010 Net-Annual Regular	330,484	324,750	324,750	324,750	331,565	331,565
		330,484	324,750	324,750	324,750	331,565	331,565
300 Material & Supplies	3600 Printing & Office Suppl	847	1,000	1,000	1,000	1,000	1,000
	3700 Postage Costs	357	450	450	450	500	500
		1,204	1,450	1,450	1,450	1,500	1,500
400 Expenses	4070 Equip Service & Rental	1,048	1,600	1,600	1,600	1,600	1,600
	4160 Telephone Expenses	254	0	0	0	0	0
		1,302	1,600	1,600	1,600	1,600	1,600
599 Inter-Departmental Charge	5205 Information Support Svc	56,031	61,097	61,097	61,097	67,662	66,089
		56,031	61,097	61,097	61,097	67,662	66,089
Total Expenditures		389,021	388,897	388,897	388,897	402,327	400,754
Net Expenditures		389,021	388,897	388,897	388,897	402,327	400,754
50 Departmental Income		300	200	200	0	0	0
Total Revenues		300	200	200	0	0	0
Net Department Total		388,721	388,697	388,697	388,897	402,327	400,754

Westchester County

Department Of Law (18)



The County Attorney is appointed by the County Executive, subject to confirmation by the Board of Legislators.

Department Of Law (18)

Mission Statement

The Law Department, Office of the County Attorney, is charged by law to serve as legal counsel to the County Executive, the Board of Legislators, and to the County and all of its constituent departments, agencies and boards. Under the direction and supervision of the County Attorney, the Law Department is currently organized into four bureaus: the Litigation Bureau; the Appeals, Opinion and Legislation Bureau; the Contracts and Real Estate Bureau and Family Court Bureau. Each bureau has the responsibility for handling specific types of legal matters on behalf of the County, including providing legal advice to County officials and employees in order to assist them on various projects the County is undertaking or contemplating undertaking; preparation and review of legal documents, drafting of legislation; researching and preparing legal opinions; and advocating on behalf of the County in trial and appellate courts, including special administrative proceedings.

The Office of Risk Management is responsible for managing a comprehensive risk management program for the County, which includes the formulation, implementation and monitoring of the policies as they relate to insurance, safety, claims and the settling of losses. The office continually determines and analyzes all casualty risks of loss to which the County's assets are exposed and evaluates such risks to determine whether they can be eliminated or minimized; investigates and manages claims of general, automobile, public officials and malpractice liability and administers the County's self insurance program.

	<u>2024</u>	<u>2025</u>
POSITIONS		
Operating	91	91
Grants		
	<u>91</u>	<u>91</u>
OPERATING BUDGET EXPENDITURES		
Personal Services	11,077,977	11,133,994
Equipment	86,711	80,000
Material & Supplies	73,933	68,100
Expenses	3,575,982	2,922,675
Interdepartmental Charges	1,140,431	1,174,466
TOTAL EXPENDITURES	<u>15,955,034</u>	<u>15,384,235</u>
OPERATING BUDGET REVENUES		
Interdepartmental	11,693,248	11,628,357
Departmental	4,064,907	4,411,283
State and Federal Aid		
TOTAL REVENUES	<u>15,758,155</u>	<u>16,039,640</u>
DEPARTMENT TAX LEVY	<u>196,879</u>	<u>(655,405)</u>

Department Of Law (18)

	2024	2025
Estimated Share of Miscellaneous Budget Items:		
Retirement Systems	2,038,691	2,210,773
Health Insurance and Benefits	3,207,800	3,333,607
DEPARTMENT TOTAL	5,443,370	5,145,975

The Appropriated 2024 figures in the supporting detail include all budget amendments through August 31, 2024 and Appropriations Assigned for Purchases on Order ("roll forwards") of \$408,751.

Department Of Law (18)

The County Attorney is mandated to be the legal advisor to the Board of Legislators and every officer whose compensation is paid from County funds in all acts of a civil nature. The County Attorney is responsible for prosecuting and defending all civil actions and proceedings brought by or against the County, the Board of Legislators and any officer of the County. The Department is required to operate under the following New York State and Federal Laws, Codes and Regulations.

Programs and Services

County Attorney

Family Court Bureau

State Law or Regulations

Westchester County Charter and Administrative Code Chapters 158 and 217

NYS County Law, Section 400 & Section 500 et. Seq.

Federal Adoption & Safe Family Act (ASFA) at 42 U.S.C

.1305 et. Seq.; Federal Uniform Interstate Family Support Act at 45 C.F.R. 303.7(c)(7); NYS Family Court Act Sections 115,

254, 254a, 301.2, 302.1 et. Seq.; NYS Social Services Law Title 5-A, Sections 111-c, 111-g, 366; 18 NYCRR Parts 345, 346, and 347

NYS Criminal Procedure Law Article 722

Department Of Law (18)

PROGRAM AREA AND SERVICES:

Litigation Bureau

- ✓ Represent the County in litigation relating to allegations of deprivation of civil rights.
- ✓ Advise departments on risk mitigation based on the results of state and federal litigation.
- ✓ Draft legislation to effect settlements and/or the initiation of lawsuits.
- ✓ Advise departments on labor, employment and civil service law issues.
- ✓ Defend County in personal injury claims and property damage litigation.
- ✓ Provide training and guidance and advice to departments on civil service, employment and labor issues.
- ✓ Review and manage property executions and seizures, warrants, evictions, attachments, pistol permit matters, etc.
- ✓ Defend challenges to decisions of certain departments providing services to children and families.
- ✓ Supervise outside counsel when needed on certain limited matters including personal injury cases involving Liberty Lines bus accidents.
- ✓ Represent the County in litigation relating to breaches of County contracts including, but not limited to construction projects or rides/services at Playland, environmental review or remediation under Federal and State law.
- ✓ Handle administrative proceedings on behalf of County Departments and/or Department heads including employee disciplinary matters, contract grievances.
- ✓ Advise all County departments regarding subpoenas for documents for pre-trial or trial testimony in non-County litigations.
- ✓ Review matters relating to authorizations for release of records, audits, collective bargaining contracts, liens, foreclosures, bankruptcies, workers compensation claims, income executions and collection matters.

- ✓ Initiate litigation when appropriate to challenge regulations or decisions of New York State affecting the County.
- ✓ Advise all County departments on environmental cases and administrative proceedings involving the Environmental Protection Agency, New York State Department of Environmental Conservation and New York City Department of Environmental Protection.
- ✓ Defend the County in state litigation relating to compliance with the State environmental conservation laws.
- ✓ Represent County in challenges to County and State legislation.
- ✓ Represent County in litigation relating to County Airport.

Specific Accomplishments

- ✓ Obtained dismissal of twenty-four federal and twenty state lawsuits through motion practice, from August 1, 2023 to August 1, July 18, 2024.
- ✓ Continue to defend the County along with outside counsel in 20 lawsuits brought against the County under the Child Victims Act.
- ✓ Won a defendants' jury verdict in a pedestrian knockdown case brought by a plaintiff that sustained injuries when struck by a County Police car that was responding to an emergency.
- ✓ Defending the County in 16 actions brought under the New York Adult Survivors Act
- ✓ Successfully thwarted the imposition of local real estate taxes on Playland Park through the filing of a petition pursuant to Article 7 of the New York Real Property Tax Law,
- ✓ Actively defending the constitutionality of the assault weapon ban contained in the New York SAFA Act, in the matter of Lane, et al v. Rocah, et al.
- ✓ Won dismissal of a lawsuit brought against the County by a former employee of the Board of Legislators alleging disability discrimination in the matter of Daly v. County of Westchester, et al.
- ✓ Through the employment of paraprofessionals, centralized the Law Department's handling of cases brought under the New York Mental Hygiene Law, and the enforcement of Medicaid liens, and pistol

Department Of Law (18)

permit revocation proceedings which resulted in an annual savings of approximately 1,220 attorney-hours.

- ✓ Obtained summary judgment in a lawsuit brought by air charter companies who challenged application of the County's Terminal Use Regulations against them. The Regulations require the air charter companies to operate from the main terminal at the County airport as opposed to a Fixed base operator area, where they currently conduct business.
- ✓ Defended the County in 63 job injury claims brought under Section 207-c of the New York General Municipal
- ✓ Handled 212 assisted outpatient proceedings, guardianship proceedings and reviews of Supplemental Needs Trusts.
- ✓ Continuing to monitor and work with outside counsel on the litigation against the manufacturers and distributors of opioids seeking damages for treatment, education, prevention and other measures as a result of the opioid epidemic in the County. To date, the County has received \$17,291,253. Additional distributions are expected over the next twelve years.
- ✓ New York State Social Services Law enables the County to procedurally enforce its substantive right to pursue repayment from the responsible third parties by the placement of a lien for public assistance on personal injury claims and suits against third parties to the extent of the expenditures made on the recipient's behalf. The Social Services Law also authorizes the placement of claims on estate assets for any assistance received by the decedent ten years prior to the date of death. DSS' recovery is realized when the claim of the public assistance recipient is resolved and/or when the estate is settled by the executor or administrator. The Law Department's pursuit of these liens and/or claims resulted in the recovery of \$3,333,714.55 in Medicaid expenditures; \$427,445.08 in public assistance funds from August 1, 2023 to July 31, 2024.
- ✓ Provided advice to Board of Legislators regarding personnel matters.
- ✓ Won the withdrawal of seventy-five claims related to the October 25, 2023 Lewiston Maine mass shooting.

Appeals, Opinions and Legislation Bureau

- ✓ Represent the County in all Appeals to the Appellate Term and the Appellate Division of the New York State Supreme Court, the New York State Court of Appeals and the United States Court of Appeals for Second Circuit.
- ✓ Draft legislation to protect the health, safety and security of the residents of Westchester County, including legislation related to:
 - The administration and enforcement of the New York State Uniform Fire Prevention and Building Code;
 - Provision of lock changes and security cameras for survivors of domestic violence;
 - Implementation of red-light cameras;
 - Regulation of dumping on county property;
 - Digitization of the County Clerk's Records;
 - Strengthening the County's prior written notice laws;
 - Updating settlement authority for the County Attorney and Board of Acquisition and Contract;
 - Moving to four-year terms for County legislators;
 - Encouraging contracting with Service-Disabled Veteran businesses;
 - Amending the dates of the Westchester Community College ("WCC") CC budget process;
 - Pistol Permit fees;
 - Amendments to the County Source Separation Law;
 - Amendments to the School Bus Arm Camera Law;
 - Review of legislation adding parcels to the Westchester County Agricultural District
 - Authorization for use of videoconferencing for meetings of the Board of Legislators and Committees and the public bodies of the County Executive;
 - Establishment of Independent Police Accountability Board;
 - Appointments of County Commissioner and Directors;

Department Of Law (18)

- Naming of County buildings and facilities;
- Pay plan amendments review;
- ✓ Continued to work on and assist with the establishment of the Independent Office of Assigned Counsel and the transition of duties from the Legal Aid Society of Westchester County.
- ✓ Draft Executive Orders for the County Executive related to procedures for administrative bodies to follow, implementing a new EEO policy, gun violence, veteran's service advisory board and group homes for the disabled.
- ✓ Advise the Board of Legislators on all legal matters including issues related to Parliamentary procedure, County law and compliance with the Rules of the Board of Legislators.
- ✓ Provide counsel to various boards and commissions including the Human Rights Commission, Solid Waste Commission, Ethics Board, and Taxi and Limousine Commission.
- ✓ Draft opinions for the County Executive, Board of Legislators, and County Departments, and Boards regarding various topics including: Questions regarding requirements of the New York State Open Meetings Law including videoconferencing meetings; questions regarding FOIL; preemption of County laws by New York State legislation; the New York State Vehicle and Traffic Law's regulation of various issues; powers and functions of the Westchester County Plumbing Board; Authority of the Department of Health to take certain actions; policies for a department relating to exposure of pregnant individuals to certain hazards; fire services at the Valhalla Grasslands Campus; updates to the County's lactation policy; local recommendations for New York State Office of Mental Health issues; conduct of certain activities at WCC; powers of the County Planning Board; gender inclusive bathrooms; protocols for loss of consciousness by students at WCC; emergency use of WCC facilities; tax issues; services for asylum seekers; Tobacco Licensing; and issues related to creation of a County Police Accountability Board.
- ✓ Respond to motions from litigants seeking poor person status in any Appellate actions.

- ✓ Work with other County departments in implementing and overseeing the County's workforce violence prevention program.
- ✓ Advise departments regarding Open Meetings Law including Videoconferencing amendments.
- ✓ Appear before the Board of Legislators to discuss the status of ongoing litigation & legislative matters and provide information requested by members of the Board.
- ✓ Represent the County in Administrative appeals including FOIL appeals.
- ✓ Advise the County regarding the appointment and removal and the terms of certain County personnel and members of County Boards and Commissions.
- ✓ Represent the Law Department on regular conference calls held by the Emergency Operations Center to ensure disaster readiness by the County
- ✓ Oversee the handling of 207-c, grievance, and disciplinary matters for the Department of Corrections
- ✓ Overseeing and handling highly sensitive litigation in conjunction with the Litigation Bureau.

Specific Accomplishments

- ✓ Advise Departments on the Americans with Disabilities Act requirements with regard to the County website;
- ✓ This Bureau was also successful in the following appeals before the United States Supreme Court, the Second Circuit Court of Appeals, the New York State Court of Appeals, and New York State Supreme Court, Appellate Division Second Department:
 - ◆ Vitagliano v. COW (clinic access at the Supreme Court)
 - ◆ Hulinsky v. COW (clinic access)
 - ◆ Daly v. Westchester County Board of Legislators
 - ◆ Keith Thomas v. Westchester Community College
 - ◆ Bronxville Scout Committee v. County of Westchester
 - ◆ Matter of Edwin B.

Department Of Law (18)

- ◆ Matter of Abel J.R.
 - ◆ Matter of Joshua J.
 - ◆ Matter of King T.
 - ◆ Matter of Amir E.
 - ✓ This Bureau worked with the County Attorney, on the following matters:
 - ◆ Liberty Lines Bus Accident Cases-A dedicated attorney is assigned to handle and monitor all Liberty Lines bus accident cases. The entire portfolio of open Liberty Lines bus accident cases - - currently 216 - - was re-examined to check current litigation status and confirm proper handling by outside counsel. In addition, all open cases were individually analyzed to set individual case reserves. In 2024, sixteen cases have been settled. 142 cases have been closed without payment. The internal process for the processing of Liberty Lines bus accident Notices of Claim was revised and the dedicated attorney now participates in the weekly Liberty Lines meetings to review all accidents that occurred during the past week. For the pre-July 1, 2018 claims subject to a \$250,000 SIR, there are 24 open claims pending, including both No Fault cases and bodily injury cases. For the post-July 1, 2018 claims, subject to a \$100,000 deductible, there are 148 open claims pending including both No Fault cases and Bodily Injury cases, and 133 open Paratransit claims. This total naturally grows every month.
 - ◆ The County's Vehicle Safety Review Board (VSRB) was reconstituted and its meetings were reinstituted. Working with Risk Management, the Law Department reviewed and revised the outdated Procedures Manual that governs the meetings and practices of the VSRB. An attorney from the bureau serves as a member of the VSRB.
 - ◆ Review and process Notices of Public Improvement Liens that are filed with the County including 28 Notices of Lien, Lien Discharges, Lien Bonds, and related filings year-to-date.
 - ◆ Prepare insurance coverage analyses including analysis of coverage determinations received from insurance companies in response to either the County's request for coverage as an additional insured under a county-party's insurance policy, or the County's request for Defense and Indemnification from a counterparty.
 - ◆ Obtained a favorable decision in an action by the City of Rye seeking to impose taxes on Playland Park, and to offset those claimed taxes against monies owed to the County.
 - ◆ Deals with ongoing issues between the County and Standard Amusements relating to Playland Park.
 - ◆ Blade/JSX/Delux/XO v. COW Worked with the Litigation Bureau on the County's motion for summary judgment, which the County won, and on the efforts to enforce the Terminal Use Regulations post-decision.
 - ◆ White Plains Aviation Partners ("Million Air") v. COW - Negotiated an interim settlement between the parties.
 - ◆ Days v. Eastchester/Westchester et.al-moved for summary judgement seeking dismissal of all of Plaintiff's claims (pending).
 - ◆ Vitagliano v. County of Westchester-secured denial of a writ of certiorari ending the Plaintiff's First Amendment challenge.
 - ◆ Hulinsky v. County of Westchester-successfully won an appeal affirming the denial of Plaintiffs' motion for a preliminary injunction, where Plaintiffs-anti-abortion "sidewalk counselors" and entities-sought to enjoin numerous provisions of the County's Clinic Access law. Briefed and filed a summary judgment motion seeking dismissal of the entire matter (pending).
 - ◆ Yeshiva Farm Pool: Represented the Department of Health and negotiated the construction of a new pool and facilities in accordance with State and local DOH requirements.
 - ◆ Worked with DOIT and HR to implement a new electronic financial disclosure filing system.
 - ◆ Worked with DOIT, the Family Court Bureau, and an outside vendor to coordinate and oversee the development of a digital evidence portal to be used in juvenile delinquency cases.
- Attorneys are required to take 24 hours of Continuing Legal Education courses ("CLE"), every 2 years in order to be registered to practice law in the State in New York. The Law Department has begun the process of